

**SUBSTITUTE FOR
HOUSE BILL NO. 5109**

A bill to amend 1949 PA 300, entitled
"Michigan vehicle code,"
by amending section 810b (MCL 257.810b), as amended by 2009 PA 99.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 810b. (1) The transportation administration collection
2 fund is created within the state treasury.

3 (2) ~~The~~ **Except as otherwise provided in subsection (9), the**
4 state treasurer may receive money from the collections authorized
5 under this act for deposit into the fund. The state treasurer shall
6 direct the investment of the fund. The state treasurer shall credit
7 to the fund interest and earnings from fund investments.

8 (3) Money in the fund at the close of the fiscal year shall
9 not lapse into the Michigan transportation fund.



1 (4) Except as provided in subsection (6), ~~upon~~**on**
2 appropriation, the department of state shall expend money from the
3 fund that is credited to the fund from revenue collected under
4 sections 801 to 810 only to pay the necessary collection expenses
5 incurred by the department of state in the administration and
6 enforcement of sections 801 to 810.

7 (5) The department of treasury shall expend money in the fund,
8 upon appropriation, only to defray the costs of collecting motor
9 fuel taxes.

10 (6) The department of state shall expend money as appropriated
11 from the fund that is credited to the fund on or after October 1,
12 2005 under each of the following sections of law to pay either the
13 necessary collection of expenses incurred by the department of
14 state in the administration and enforcement of sections 801 to 810
15 or other necessary expenses:

16 (a) Sections 208b and 232.

17 (b) Section 7 of 1972 PA 222, MCL 28.297.

18 (c) Sections 80130, 80315, 81114, and 82156 of the natural
19 resources and environmental protection act, 1994 PA 451, MCL
20 324.80130, 324.80315, 324.81114, and 324.82156.

21 (7) The department of state shall, by January 1 of each year,
22 file a report with the secretary of the senate and the clerk of the
23 house of representatives providing an itemized list of deposits
24 into and expenditures from the fund for the preceding fiscal year.

25 (8) The state transportation department shall review all funds
26 received by the state transportation department from funding
27 sources provided for under this act to determine whether those
28 funds can be used to leverage additional federal funds.

29 **(9) Beginning the fiscal year ending September 30, 2027, and**



1 through the fiscal year ending September 30, 2029, the amount under
2 subsection (2) must be reduced annually by \$1,700,000.00, and that
3 \$1,700,000.00 must be deposited in the general fund.